

Final Action Agenda/Minutes are supplemented by audio and video recordings of the meetings, as well as transcripts. Video recordings of Village Council meetings from June 8, 2016 forward, as well as agendas, staff reports, resolutions, ordinances, and other documents related to the meetings can be viewed online at <https://estero-fl.gov/agendas/> at the corresponding meeting date.

APPROVED JANUARY 6, 2021

FINAL ACTION AGENDA/MINUTES

VILLAGE COUNCIL MEETING

**Village of Estero Council Chambers
9401 Corkscrew Palms Circle
Estero, FL 33928
December 2, 2020 9:30 a.m.**

1. CALL TO ORDER

INVOCATION: Pastor John Roth of Thrive Community Church

PLEDGE OF ALLEGIANCE: Led by Mayor Bill Ribble

ROLL CALL: Present: Mayor Bill Ribble - District 1, Vice Mayor Katy Errington (via Zoom) - District 4, Councilmember Howard Levitan (via Zoom) - District 2, Councilmember Jon McLain - District 3, Councilmember Jim Boesch - District 5, Councilmember Nick Batos - District 6, and Councilmember Jim Wilson (via Zoom) - District 7.

Also present: Village Manager Steve Sarkozy, Village Attorney Burt Saunders, Deputy Village Manager Kyle Coleman, Village Land Use Counsel Nancy Stroud, Public Works Director David Willems, Community Development Director Mary Gibbs, Deputy Village Clerk Tammy Duran, and Executive Assistant to the Village Manager Carol Sacco.

2. APPROVAL OF AGENDA, ADDITIONS, AND DELETIONS

Staff Presentation/Comments:
Burt Saunders, Village Attorney

Motion: Motion to permit Councilmembers Levitan, Wilson, and Vice-Mayor Errington to participate remotely in Zoom Presentation.

Motion by: Councilmember Nick Batos

Seconded by: Councilmember Jim Boesch

Action: Approved to permit Councilmembers Levitan, Wilson, and Vice-Mayor Errington to participate remotely in Zoom Presentation.

Vote: (Roll Call)
Aye: Councilmembers Levitan, McLain, Boesch, Batos, Vice Mayor Errington, and Mayor Ribble
Nay:
Abstentions:

Motion: Motion to approve agenda.

Motion by: Councilmember Jim Boesch
Seconded by: Councilmember Jon McLain

Action: Approved agenda.

Vote: (Roll Call)
Aye: Councilmembers Levitan, McLain, Boesch, Batos, Vice Mayor Errington, and Mayor Ribble
Nay:
Abstentions:

3. PUBLIC COMMENT ON NON-AGENDA ITEMS
Joe Miceli, 20271 Rookery Drive

4. CONSENT AGENDA:

(a) November 18, 2020 Council Meeting Minutes

Motion: Move to approve the Consent Agenda.

Motion by: Councilmember Jim Boesch
Seconded by: Councilmember Nick Batos

Action: Approved the Consent Agenda.

Vote: (Roll Call)
Aye: Councilmembers Levitan, McLain, Boesch, Batos, Wilson, Vice Mayor Errington, and Mayor Ribble
Nay:
Abstentions:

5. CONSIDERATION OF ITEMS DEFERRED FROM CONSENT AGENDA

6. ACTION ITEMS:

Resolution 2020-25 Covid-19 CARES Act Contracts and Budget Amendment
2020-25 A Resolution of the Village Council of the Village of Estero, Florida,
Ratifying the Contracts to Procure Personal Protective Gear and Community Testing
for Village Residents, Approving a Budget Amendment; and Providing an Effective
Date.

Staff Presentation/Comments:

Steve Sarkozy, Village Manager
Kyle Coleman, Deputy Village Manager

Council Questions or Comments:

Councilmembers Levitan, McLain, Boesch, Batos, Vice Mayor Errington, and Mayor
Ribble

Public Comment: None.

Motion: Motion for a continuance until December 9th meeting.

Motion by: Councilmember Jim Boesch

Seconded by: Councilmember Nick Batos

Action: Approved motion for a continuance until December 9th meeting.

Vote: (Roll Call)

Aye: Councilmembers Levitan, McLain, Boesch, Batos, Wilson, Vice Mayor
Errington, and Mayor Ribble

Nay:

Abstentions:

7. SECOND READING OF ORDINANCES:

(a) Firestone Rezoning Case

Second reading of Ordinance No. 2020-09 an Ordinance of the Village Council of the
Village of Estero, Florida, Considering a Zoning Amendment to the Estero Town
Center Commercial Planned Development, to allow Auto Repair and Service, Group
I, as A Stand-Alone Use on Property Located in the Southeast Quadrant of Corkscrew
Road and Three Oaks Parkway and Consisting of Approximately 1.14 Acres;
Providing for Conflicts; Providing for Severability; and Providing an Effective Date.

Staff Presentation/Comments:

Steve Sarkozy, Village Manager
Mary Gibbs, Community Development Director

Presentation/Information by:

Neale Montgomery, Pavese Law Firm
Clay Stephens, Vice President of Real Estate Strategy with Palmetto Capital Group
Robert V. Klempf, AIA, NCARB, SGA Design Group
Brendan Sloan, P.E., Avalon Engineering, Inc.
David Kulsveen, Landesco, PLLC
Ted Treesh, TR Transportation Consultants, Inc.
Doug Kirby, Property Owner
Wayne Arnold, Q. Grady Minor and Associates

Council Questions or Comments:

Councilmembers Levitan, McLain, Boesch, Batos, Wilson, Vice Mayor Errington, and Mayor Ribble

Adjourn Regular Session 11:24 am and reconvened at 11:30 am

Public Comment: None

Motion: Motion for a continuance until December 9th meeting, and if not ready to be continued until January 6th meeting.

Motion by: Councilmember Nick Batos

Seconded by: Councilmember Jon McLain

Action: Approved motion for a continuance until December 9th meeting, and if not ready to be continued until January 6th meeting.

Vote: (Roll Call)

Aye: Councilmembers Levitan, McLain, Boesch, Batos, Wilson, Vice Mayor Errington, and Mayor Ribble

Nay:

Abstentions:

(b) Stormwater Discharge Ordinance

2020-08 Ordinance of the Village Council of the Village of Estero, Florida, Providing for the Prohibition of Illicit Discharges to Stormwater Systems; Providing for Purpose; Providing for Penalty; Providing for Conflict; Providing for Severability; Providing for Codification; Providing an Effective Date.

Recommended Action:

Approve Ordinance No. 2020-08 NPDES Illicit Discharge Ordinance

Staff Presentation/Comments:
Steve Sarkozy, Village Manager

Council Questions or Comments: None.

Public Comment: None.

Motion: Motion approve Ordinance No. 2020-08 NPDES Illicit Discharge Ordinance

Motion by: Councilmember Jon McLain
Seconded by: Councilmember Nick Batos

Action: Approved Ordinance No. 2020-08 NPDES Illicit Discharge Ordinance

Vote: (Roll Call)
Aye: Councilmembers Levitan, McLain, Boesch, Batos, Wilson, Vice Mayor Errington, and Mayor Ribble
Nay:
Abstentions:

8. **PUBLIC COMMENT ON NON-AGENDA ITEMS:** None.

9. **COUNCIL COMMUNICATIONS / FUTURE AGENDA ITEMS**

Councilmembers McLain, Levitan, and Mayor Ribble

10. **VILLAGE ATTORNEY'S REPORT:** None.

11. **VILLAGE MANAGER'S REPORT:**

Update regarding the County action on East Corkscrew Road Regarding the FFD Project.

Adjourn Regular Session and Convene Workshop Items

12. **WORKSHOP ITEM:**

(a) Land Development Code

Staff Presentation/Comments:

Steve Sarkozy, Village Manager
Mary Gibbs, Community Development Director
Nancy Stroud, Village Land Use Counsel

Presentation/Information by:

Craig Richardson, Clarion
David Henning, Clarion

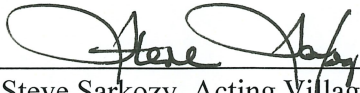
Council Questions or Comments:

Councilmembers Levitan, McLain, Boesch, Batos, Wilson, and Mayor Ribble

Public Comment: None

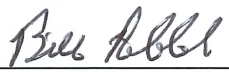
12. ADJOURNMENT at 12:45 pm.

ATTEST:

By: 
Steve Sarkozy, Acting Village Clerk

(td/SS)

VILLAGE OF ESTERO, FLORIDA

By: 
Bill Ribble, Mayor